

25NNCV06782 25NNCV06782

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-27

Motion: DEMURRER TO FIRST AMENDED COMPLAINT AND MOTION TO STRIKE

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Case Number: 25NNCV06782 Hearing Date: July 27, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

SORAYA VELASQUEZ,

Plaintiff(s),

vs.

AVALON
BAY COMMUNITIES, INC.,

Defendant(s).

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CASE NO.: 25NNCV06782

[TENTATIVE]

ORDER RE: DEMURRER TO FIRST AMENDED COMPLAINT AND MOTION TO STRIKE

Dept.

3

8:30

a.m.

July 27,

2026

I. INTRODUCTION

On

September 25, 2025, plaintiff Soraya Velasquez ("Plaintiff") filed this action against defendant Avalon Bay Communities, Inc. ("Defendant"). The action arises from Plaintiff's tenancy in a rental home located at 4121 Oak Street #3, Burbank, CA 91505 ("Rental Home").

On January

13, 2026, the Court sustained Defendant's demurrer to her initial complaint with 20 day's leave to amend. Defendant served notice of the Court's order on January 14, 2026.

On February

3, 2026, Plaintiff timely filed the operative First Amended Complaint. (Code Civ. Proc. § 472b.)

On March 4, 2026, Defendant filed a demurrer to Plaintiff's Sixth Cause of Action for fraud and moved to strike the FAC's punitive damages allegations.

Plaintiff
filed opposition briefs on July 13, 2026.

Defendant
filed reply briefs on July 20, 2026.

II. LEGAL STANDARDS

A. Demurrer

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) "We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]" (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 ["the facts alleged in the pleading are deemed to be true, however improbable they may be"].) Allegations are to be liberally construed. (Code Civ. Proc., § 452.) In construing the allegations, the court is to give effect to specific factual allegations that may modify or limit inconsistent general or conclusory allegations. (*Financial Corporation of America v. Wilburn* (1987) 189 Cal.App.3d 764, 769.)

B. Motion to Strike

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A.

Demurrer

Defendant demurs to Plaintiff's Sixth

Cause of Action for fraud on the grounds that it is not pleaded with specificity. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.)

Plaintiff alleges that on or about

October 2023, a leasing office representative represented to her that the Rental Home had not sustained any previous water damage, did not have any mold contamination, and had been maintained in good condition. Plaintiff also was told that any problems would be promptly and timely repaired by qualified professionals. (FAC, ¶ 98.)

In sustaining Defendant's demurrer to

Plaintiff's previous complaint, the Court noted that Plaintiff did not plead the names of any individuals and did not state with sufficient specificity when those statements were made. Plaintiff now alleges that an unidentified leasing office representative spoke with her but Defendant still contends that Plaintiff's

allegations remain deficient because the representative's name is not alleged. Defendant argues that Plaintiff is required to allege not only the representative's name, but her job title, duties, authority, or even facts establishing that the unidentified person was employed by Defendant. However, less specificity is required when the facts lie more in the defendant's possession. (Committee On Children's Television, *supra*, 35 Cal.3d at p. 217.) Therefore, this additional information about the leasing office representative is not required.

Nevertheless, Plaintiff merely alleges that the statements were made on or about October 2023, even though she personally participated in this alleged conversation and should be able to plead at least some approximate date or other facts describing when the discussion took place.

Accordingly, the demurrer to the Sixth Cause of Action is SUSTAINED with leave to amend.

B.
Motion
to Strike

Defendant moves to strike Plaintiff's prayer for punitive damages and related allegations of willful, malicious, oppressive, or fraudulent conduct.

A corporate employer shall not be liable for punitive damages based on the actions of an employee, unless an officer, director, or managing agent of the corporation was personally guilty of oppression, fraud, or malice, or had advance knowledge of the unfitness of the employee and employed him for a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct. (Civ. Code, § 3294, subd. (b).)

Since the allegations supporting a request for punitive damages must be alleged with specificity; the motion to strike is GRANTED because Plaintiff fails to identify an officer, director, or managing agent of Defendant who engaged in, ratified, or authorized the alleged wrongful conduct. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.)

IV. CONCLUSION

The demurrer to the Sixth Cause of Action is SUSTAINED with 20 days' leave to amend.

The motion to strike is GRANTED with leave to amend.

Moving party to give notice.

Dated
this 27th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.